

25CMCV00591 25CMCV00591

County: los-angeles
Division: Civil Law and Motion
Department: A
Hearing date: 2026-08-20
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=COM%2CA%2C08%2F20%2F2026
Source SHA-256: a91e75150f157f434241fe47b2d2cb4f41defa0e2250055af2e04db26a9eb9d1

Case Number: 25CMCV00591 Hearing Date: August 20, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

CAPITAL ONE, N.A.,

Plaintiffs,

vs.

JASON C
GERROS,

Defendant.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 26CMCV00591

[TENTATIVE]

ORDER DENYING DEFENDANT JASON C GERROS'S MOTION TO QUASH SERVICE OF SUMMONS,
OR IN THE ALTERNATIVE, TO DISMISS FOR FAILURE TO EFFECT SERVICE OF PROCESS

Dept.

A

DATE:

August 20, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 3/30/26

TRIAL:

Not Set

MOVING PARTY: Defendant

Jason C Gerros

RESPONDING PARTY: Plaintiff

Capital One, N.A.

1.

Background

On

March 30, 2026, Plaintiff Capital One, N.A. ("Plaintiff") filed a complaint against Defendant Jason C Gerros ("Defendant") for breach of contract. Plaintiff alleges that on June 3, 2017, the parties entered into a contract and on January 9, 2025, Defendant failed to make payments on the contract as agreed and despite Plaintiff's demand, Defendant continues to refuse to pay Plaintiff the amount owed under the contract, the sum of \$37,772.65.

On June

15, 2026, the Court entered default judgment against Defendant. Defendant now moves to quash service of summons and filed the instant motion on July 28, 2026. Alternatively, Defendant requests that the court dismiss the action without prejudice because Plaintiff failed to serve Defendant within three years of the filing of the complaint, or that the court deny request for entry of default or set aside any default entered due to invalid service. On August 14, 2026, Plaintiff filed its opposition.

2.

Discussion

Defendant moves for an order quashing any and all purported service of summons and complaint upon Defendant on the ground that Plaintiff failed to effect valid and legally sufficient service of process upon Defendant. In the alternative, Defendant moves for an order dismissing this action without prejudice on the ground that Plaintiff failed to serve Defendant within three years of filing the Complaint as required or denying Plaintiff's request for entry of default or setting aside any default entered herein because no valid service of process was made upon Defendant.

a. Untimely Notice of Motion

Plaintiff

notes that Defendant's motion was untimely because he did not serve and file the motion with the requisite 16 court days, plus 5 calendar days when service is effectuated by mail, before the August 20, 2026, hearing date. (Code Civ. Proc., § 1005, subd. (b).) In order to timely file and serve the motion, Defendant needed to serve the motion by July 24, 2026, and Defendant served and filed the instant motion on July 28, 2026. Despite this procedural deficiency, the Court will consider the motion on its merits as Plaintiff was able to file an opposition.

b. Default Judgment

Defendant requests

to set aside the default, however, the Court notes that it entered default judgment on June 15, 2026.

"The court may

. . . on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc., § 473, subd. (d).) "[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]" (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) "[T]he filing of a proof of service creates a rebuttable presumption that the service was proper" but only if it "complies with the statutory requirements regarding such proofs." (Id. at pp. 1441-1442.) "A court lacks jurisdiction over a party if there has not been proper service of process." (Ruttenberg v. Ruttenberg (1997) 53 Cal.App.4th 801, 808.)

The court

denies Defendant's request that the action be dismissed pursuant to Code of Civ. Proc. § 583.210, subd. (a) on the ground that he was not served within three years of the filing of the complaint.

The complaint was filed on March 30, 2026. Because three years have not passed since the complaint was filed, this argument lacks merit.

Defendant

argues that the default entered against him should be set aside, because Plaintiff has not accomplished valid, legally sufficient service of process upon Defendant. Defendant contends service is invalid because the proof of service shows substitute service was purportedly

served on “Jane Doe” which falls short of the reasonable diligence required as a prerequisite to substituted service under California law. However, this argument lacks merit because the April 16, 2026 “Declaration of Reasonable Diligence” executed by registered process server Donara Gevorgyan and filed with the proof of service by substituted service expressly sets forth efforts and reasonable diligence exercised in attempting service on Defendant prior to substituted service was effectuated.

Defendant further argues that he is not a resident of the service address, and has no affiliation or awareness of any female as described in the proof of service. However he did not set forth these facts in his sworn declaration, and therefore has not established these facts to be true. He also contends he has not been presented with any legal service document or mailing as listed in the proof of service.

The Court finds that Defendant’s argument is not sufficient to overcome the presumption that the service was proper. In his declaration, all Defendant states is that he resides in Phoenix, Arizona and that he has never been personally served with the summons or complaint in this action, no one has ever handed him a copy of the summons and complaint, and no such documents were left at his residence or business by any process server or other person on behalf of Plaintiff. (Declaration of Jason Gerros, ¶¶ 3-4.)

This self-serving declaration is not sufficient to overcome the presumption that service as described in the April 20, 2026 Proof of Service was proper and valid. Defendant provides no details that would help the Court determine whether service at the address in proof of service was proper. For example, Plaintiff does not provide information as to how long he has lived in Phoenix, Arizona and thus, the Court cannot determine whether at the time substitute service was effectuated, Defendant lived at the address on the proof of service or whether Defendant lived in Phoenix, Arizona. He does not state that he does not receive mail or has never resided at the address where substituted service was effectuated. Moreover, he has not established foundation or personal knowledge for his assertion that “no such documents have been left at my residence or business by any process server or other person on behalf of Plaintiff.”

Moreover, Defendant

does not seek to vacate the default judgment pursuant to Code of Civil Procedure § 473, subd. (b) or otherwise, and instead seeks to have the default and presumably the default judgment set aside as void for lack of service.

Accordingly,

the Court denies Defendant's request to set aside the default. Because the Court denies Defendant's request to set aside the default and default judgment, the Court cannot consider the motion to quash service of summons.

3.

Conclusion

Based on the foregoing, the court DENIES Defendant Jason Gerros's motion to quash service of summons, or in the alternative, to dismiss for failure to effect service of process, or in the alternative to set aside the default and default judgment.

Plaintiff is ordered to give notice.

DATED: August 20, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court